

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
7/24/2024 9:51 AM

Entry Number
8,076

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge
Stephen Lowney

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

03/23/2024

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

ON 03/23/2024 disqualified bribed crook ("judicial officer") Stephen Lowney filed with the court "Order striking motion to recuse" (attached), where he addressed non-existent "motion to recuse filed on February 3, 2023", denied impermissible conflict of interest and stated that he continues presiding over the case 22FL003144 and will continue committing repetitive fraud on court and severe retaliation to me, Petitioner on this case.

In fact, Motion to Recuse was filed only once on February 20, 2024. Not February 3.

In fact, on March 23, 2024 Stephen was already served TWO Statements of Disqualification, and "striking" is absolutely inapplicable in this case - because during past two hearings 2/27 and 3/21 Lowney already stated his position on record in the courtroom - HE REFUSES TO RECUSE HIMSELF DESPITE IMPERMISSIBLE CONFLICT OF INTEREST, AND CONTINUES COMMITTING SEVERE REPETITIVE FRAUD ON COURT, REMOVING HEARINGS, DENYING ALL REQUESTS, AND BLOCKING CASE FROM RESOLUTION (FINAL TRIAL WAS REMOVED FROM CALENDAR FIVE TIMES).

With that said, "Motion striking" was absolutely irrelevant to what's happening on the case, but TWO STATEMENTS OF DISQUALIFICATION AGAINST STEPHEN LOWNEY WERE NOT ADRESSED NEITHER BY CLERK (WHO MUST SEND NOTICE OF SELECTION OF JUDGE TO JUDICIAL COUNCIL), NOR BY PRESIDING JUDGE BETH MCGOWEN.

Lowney used the same irrelevant template for "order striking" as his disqualified predecessor Andrea Flint used in 2023 until she was removed from court after TWO STATEMENTS OF DISQUALIFICATION AND NINE MOTIONS TO RECUSE.

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,

I respectfully ask you for help to:

- 1) REMOVE DISQUALIFIED CROOK STEPHEN LOWNEY FROM SUPERIOR COURT WITH DISHONORS AND BAN HIM FROM OCCUPYING ANY JUDICIAL, POLITICAL OR LAW-RELATED ROLES INDEFINITELY,
- 2) PROVIDE OFFICIAL NOTICE OF DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS OF THREE DISQUALIFIED CROOKS STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY - RETROACTIVELY TO 09/13/2022
- 3) TRANSFER CASE 22FL003144 TO ANOTHER DEPARTMENT (BETTER - TO ANOTHER COURT, FOR EXAMPLE SAN MATEO COUNTY
- 4) ENSURE THAT PRESIDING JUDGE BETH MCGOWEN CANNOT CONCEAL DISQUALIFICATION OF STEPHEN LOWNEY AS SHE CONCEALED PREVIOUS TWO DISQUALIFICATIONS OF ANDREA

FLINT AND JAMES TOWERY, AND ENSURE THAT LOWNEY WILL BE DISQUALIFIED OFFICIALLY

Appreciate your prompt attention to this urgent matter.
Thank you

File Upload

2024-03-23 [Lowney] Order striking motion to recuse Lowney.pdf

2024-02-20 Disqualification against Lowney.pdf

2024-03-11 Disqualification against Lowney Amended (printed).pdf

2023-11-13 Disqualification against Flint.pdf

PAJAR Response - Flint - 2024-03-20.pdf